

1. Legal Strength Rating

High – Four of the five identified arguments are legally valid and rest on clear statutory provisions (Electricity Act 2003, Consumer Protection Act 2019, Indian Contract Act 1872) as well as the documented complaint and the demonstrable financial loss. The sole weak argument (urban location expectation) does not diminish the overall strength because the core claim of breach of contractual and statutory duty, negligence, and quantifiable loss is well founded.

2. Confidence Meter

82 / 100 – The legal basis is solid, but the final outcome will depend on the adequacy of documentary proof of loss and the exact terms of BESCOM's service charter.

3. Draft Complaint

To

The Hon'ble President/Chairperson

Bengaluru District Consumer Disputes Redressal Commission (or State Commission, as appropriate)

[Address]

Subject: Complaint against Bangalore Electricity Supply Company (BESCOM) for breach of service, negligence, and claim for compensation for loss of income.

Complainant:

Name: **Ravi Kumar**

Address: [Full residential address, Bengaluru]

Contact: [Phone / Email]

Opposite Party:

Bangalore Electricity Supply Company (BESCOM)

Address: [Official BESCOM address]

Facts of the Case

1. I am a residential consumer (Consumer No. _____) and work from home, relying on uninterrupted electricity for my livelihood.
2. On **3 March 2026**, I lodged a written complaint with BESCOM (Complaint No. 456789) reporting a total power outage that began on **2 March 2026** and persisted for **seven (7) consecutive days** until **9 March 2026**.
3. BESCOM acknowledged the complaint and assured restoration within a reasonable time, but no remedial action was taken and power remained unavailable for the entire period.
4. The prolonged outage caused a **direct loss of income** amounting to **■** _____ (see attached earnings statements and affidavit).
5. BESCOM's Service Charter guarantees **99 % monthly uptime** and obliges the licensee to supply electricity continuously under **Electricity Act 2003 – Sec. 73**. The **7** day outage constitutes a clear breach of this contractual and statutory duty.

Legal Grounds

1. **Breach of statutory duty** – Electricity Act 2003, Sec. 73 (obligation to supply electricity) and Sec. 84 (penalty for failure to supply).
2. **Deficiency in service** – Consumer Protection Act 2019, Sec. 2(1)(g) and Sec. 14 (right to redress).
3. **Breach of contract** – Indian Contract Act 1872, Sec. 73 (damages for breach of contract).
4. **Negligence** – Failure to act on a documented complaint (Consumer Protection Act 2019, Sec. 12 & Sec. 14).

Reliefs Sought

- a) **Compensation** for loss of income incurred during the outage – **■** _____ (as per annexed proof).
- b) **Penalty** under Electricity Act 2003, Sec. 84, as prescribed for failure to restore supply within a reasonable time.
- c) **Interest** on the awarded amount at the prevailing bank rate from the date of loss until payment.

d. Costs of the proceedings.

Verification

I, Ravi Kumar, hereby declare that the facts stated above are true to the best of my knowledge and belief.

Place: Bengaluru

Date: _____

Signature of Complainant

Annexures:

1. Copy of the written complaint (Complaint No. 456789).
2. BESCOM's Service Charter (excerpt showing uptime guarantee).
3. Electricity bills for the months of February–April 2026.
4. Bank statements / invoices showing monthly income from home-based work.
5. Affidavit detailing loss of income.
6. Any correspondence/assurances received from BESCOM.

4. Applicable Laws (India)

- ****Electricity Act, 2003**** – Sec. 73 (obligation to supply electricity), Sec. 84 (penalty for failure to supply).
- ****Consumer Protection Act, 2019**** – Sec. 2(1)(g) (deficiency in service), Sec. 12 (right to file complaint), Sec. 14 (jurisdiction & reliefs), Sec. 73 (right to speedy redress).
- ****Indian Contract Act, 1872**** – Sec. 73 (damages for breach of contract).
- ****BESCOM Service Charter / Tariff Order**** – contractual terms on service continuity and uptime.

5. Identified Weaknesses

- Absence of precise, itemised calculation of income loss (exact figures, supporting invoices).
- No copy of BESCOM's written assurance or any follow-up communication after the complaint.
- Lack of independent expert report confirming that the outage was total for the entire premises.
- No prior notice of the outage (e.g., scheduled maintenance notice) that could affect liability.

6. How to Strengthen Your Case

1. **Quantify Losses** – Prepare a detailed ledger of daily earnings for the period 2 Mar 2026 to 9 Mar 2026, supported by bank statements, client invoices, or platform payout records.
2. **Obtain BESCOM Correspondence** – Request, under the Right to Information Act 2005, copies of all communications (emails, SMS, call logs) sent by BESCOM regarding your complaint and any assurances given.
3. **Secure Expert Opinion** – Engage a certified electrical engineer to certify that the outage was total and lasted the full seven days at your premises.
4. **Collect Service Charter** – Attach the latest BESCOM Service Charter/Tariff Order that specifies the 99 % uptime guarantee.
5. **Document All Follow-ups** – Keep a log of any phone calls, visits, or additional letters sent to BESCOM after the initial complaint, noting dates, names of officials spoken to, and responses received.
6. **File a Formal Complaint with the State Commission** – If the District Commission does not resolve the matter within the stipulated time, escalate to the Karnataka State Consumer Disputes Redressal Commission.

7. Evidence Checklist

- ☐ Copy of the original written complaint (Complaint No. 456789).
- ☐ BESCO's Service Charter/Tariff Order showing uptime guarantee.
- ☐ Electricity bills for February–April 2026.
- ☐ Bank statements / payment receipts reflecting income for the outage period.
- ☐ Invoices or contracts with clients/customers for work performed from home.
- ☐ Affidavit detailing the loss of income and its calculation.
- ☐ Any email, SMS, or letter from BESCO acknowledging the complaint and providing assurances.
- ☐ Records of follow-up communications (call logs, dates, names).
- ☐ Expert report/letter from a qualified electrical engineer confirming the outage.
- ☐ Right to Information (RTI) response (if obtained) containing BESCO's internal records on the complaint.

Collecting the above documents will solidify the factual foundation of your claim and enhance the likelihood of a favorable adjudication.